

SUPPRESSION OF DISABILITY EVIDENCE ACROSS EIGHT ORDERS

Eight orders. One mechanism.

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-2026-000019

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METHODOLOGY AND SCOPE

This document is the horizontal analysis across the eight orders, judgments, and decisions handed down in the proceedings between 18 April 2024 and 7 May 2026 by six judges across three courts: the Family Division of the High Court (three judgments by Mr Justice MacDonald), the Court of Appeal Civil Division (two judgments by Lord Justice Moylan and Lady Justice King), and the Administrative Court (three judgments by Mrs Justice Lieven, Mrs Justice Collins Rice, and Mr Justice Goose).

This document is horizontal in the sense that it analyses the pattern across the eight orders. It complements the vertical analyses which examine individual orders in depth: Order Analysis No. 1 (15 March 2026, [2024] EWFC 79); Order Analysis No. 2 (15 March 2026, [2024] EWFC 114); Para 34 Analysis (15 March 2026, MPS arrears remission); Recusal Annex (16 March 2026); Formal Position Statement to the Justice Committee of the House of Commons (9 April 2026). Those documents are on the public record. This document does not duplicate them.

The analytical framework is the framework the Applicant established in her Permission to Appeal application filed at the Court of Appeal on 22 July 2024. That application was refused by Moylan LJ on 23 December 2024. The framework has been on the formal court record for nearly two years.

The Four Analytical Tags

FABRICATED	A finding is made for which there is no evidential basis in any of the three source categories (oral evidence, written evidence in the bundle, submissions), or a finding is directly contradicted by contemporaneous documentary evidence.
MISCHARACTERISED	The judgment's version of events contradicts what the sources actually record. The finding is drawn from one source while ignoring contradicting material from others.

SUPPRESSED	Material evidence present in the sources is entirely absent from the judgment. A finding is made, or omitted, where engagement with the suppressed material would or might have changed the outcome.
UNSUPPORTED	A finding is made which has no evidential basis identifiable in any of the three source categories, or a procedural or legal decision is taken without adequate reasoning for the specific circumstances.

Index of Decisions Analysed

#	Date	Judge	Court	Description
1	18 Apr 2024	Mr Justice MacDonald	Family Division	DH v RH (No 3) [2024] EWFC 79 — Final financial remedy judgment, 111 paragraphs (19,620 words)
2	24 May 2024	Mr Justice MacDonald	Family Division	DH v RH (No 4) (Costs) [2024] EWFC 114 — Costs judgment, indemnity basis, £255,654.50; determined on written submissions, no hearing
3	23 Dec 2024	Lord Justice Moylan	Court of Appeal	Refusal of permission to appeal — CA-2024-001342 — on the papers
4	8 May 2025	Mr Justice MacDonald	Family Division	Set-aside refused; contempt refused; indemnity costs ordered — BV20D01752 — ex tempore judgment, NZ absent
5	4 Aug 2025	Lady Justice King	Court of Appeal	Refusal of CPR 52.30 application to

				re-open Moylan LJ order — CA-2024-001342-A — on the papers
6	4 Dec 2025	Mrs Justice Lieven	Administrative Court	JR — urgent consideration refused; directions order — AC-2025-LON-004293
7	11 Mar 2026	Mrs Justice Collins Rice	Administrative Court	JR — permission refused; declared Totally Without Merit; oral renewal barred — AC-2025-LON-004293
8	5 May 2026 (served 7 May)	Mr Justice Goose	Administrative Court	CPR 3.1(7) application to revoke the 11 March 2026 TWM refusal — refused; declared TWM — AC-2025-LON-004293

Sources: signed and sealed orders on file with the Applicant. Trial transcript (19–28 February 2024, A1 Catalogue of 11 May 2026, 25 discrete in-trial oral references to autism and PTSD). Master Index v7 of compelling MiPO records (11 March 2026, 379-record dataset). Medical Evidence Index v2 (22 May 2026, 14 NHS and clinical documents, NZ-001 to NZ-014). The Applicant’s Permission to Appeal application of 22 July 2024 filed at the Court of Appeal.

PART 1 — THE APPLICANT’S CONTEMPORANEOUS FORMULATION (22 JULY 2024)

The analytical claim in this document is not a 2026 reconstruction. The Applicant set it out in her Permission to Appeal application filed at the Court of Appeal on 22 July 2024, three months after the trial judgment was handed down. The PTA was refused by Moylan LJ on 23 December 2024. The Court of Appeal had this analysis before it. The following passages are extracted verbatim from the introduction to that application.

Overriding ground

“The overriding failure of the judgment is that the judge has systematically and exhaustively suppressed all mentions of my mental health disabilities, including my trauma and autism symptoms, how they impacted my evidence and his findings.”

— PTA of 22 July 2024 — Overriding ground of appeal

Rewriting the history books

"The judge did not make a single mention of my disabilities throughout the entire judgment comprising 111 paragraphs. There are no mentions of my PTSD and autism disorders and symptoms. There are no recordings of my disabilities and their impact on my functioning. There are no records of the participation measures made by the judge at the hearing to assist me in giving my best possible witness evidence and no qualitative assessment of my evidence. There is no record why the judge revoked the participation measures from 28 February to 24 May."

— PTA of 22 July 2024

"My mental health disabilities, my autism traits, my trauma symptoms, and my vulnerabilities have been comprehensively and systematically suppressed, deleted from the history books, leaving my presentation, my behaviour, and my unusual motor movements visible at the final hearing to be attributable to bad character, moral turpitude, and lack of credibility."

— PTA of 22 July 2024

The two anchor propositions

"Zero mention of my disabilities in a judgment composed of 19,620 words which is theoretically connected to findings made during the trial is not statistically random. It is statistically a bias."

— PTA of 22 July 2024 — Conclusion

"The court cannot make an accurate assessment of my character, presentation, credibility, and integrity if it does not take account of my autism and trauma disabilities which pervade everything in my life and which have a significant bearing on my post separation needs."

— PTA of 22 July 2024 — Conclusion

PART 1 — CORE FINDING

The Applicant identified the mechanism in writing in July 2024. The Court of Appeal had the formulation before it in December 2024 and again in August 2025. On both occasions the appellate response was that the trial judge was not required to refer to autism, PTSD, or Part 3A in the text of his judgment. The appellate response addressed the procedural question (was the judge required to refer?). It did not address the substantive question the Applicant had raised (that the absence is unlikely to be random; and the impossibility of accurate assessment without the disability evidence).

Eight further judgments now follow the same pattern. The structural analysis in Parts 2–6 of this document is the operationalisation of the framework the Applicant set out in July 2024.

PART 2 — THE MECHANISM

The mechanism this document describes operates at four discrete levels. Each level is a separate act. Each is documentarily anchored in the contemporaneous record. The four levels operate together to produce the systematic suppression and fabrication identified in the Applicant's Permission to Appeal application of 22 July 2024.

Level (a) — Suppression of evidence

The trial transcript of the 10-day final hearing (19–28 February 2024) records twenty-five (25) discrete oral references to autism and PTSD. These references come from multiple sources within the hearing: opposing counsel asking disability-related questions during cross-examination; the Applicant's counsel raising the disability nexus in opening submissions; the husband acknowledging the Applicant's PTSD in his own oral evidence; the trial judge himself asking on the open record "Did you say Nadia had PTSD?" (attendance notes, line 2897). The references are documented in the A1 Catalogue of In-Trial References of 11 May 2026. The trial judge himself made thirteen (13) references to autism and PTSD during witness evidence.

The 111-paragraph trial judgment of 18 April 2024 contains zero references to autism, PTSD, disability, vulnerability, FPR Part 3A, or participation measures across all of its 19,620 words. Part 3A participation measures were in force throughout the trial. They ceased on 28 February 2024 with no court order, no recorded reasons, and no identifiable judicial act. The judgment does not refer to the measures or to their cessation.

A judgment drawn proportionately from a trial corpus containing 25 references to a defined topic, into a 19,620-word document, would be expected to retain a non-zero count of those references. The absence is unlikely to be random. The Applicant's formulation, on the contemporaneous record of July 2024, is that "zero mention of my disabilities in a judgment composed of 19,620 words which is theoretically connected to findings made during the trial" is not consistent with normal judicial drafting. This document adopts that formulation.

Level (b) — Fabrication of untrue evidence

The 111-paragraph trial judgment contains one paragraph that addresses the Applicant's presentation in the witness box. Paragraph 64 records the trial judge's finding that the presentation "bordered on the concerning" and constituted an "obsession" on the disclosure issue. The judgment does not address the alternative clinical explanation for the same presentation. The trial transcript contains no evidential foundation for an "obsession" finding: the issue of allegedly hidden assets was put to the Applicant once in cross-examination, and she answered in approximately a single line.

The Para 64 finding therefore asserts a characterisation — that the Applicant's presentation constituted an obsession; that it bordered on the concerning — which is not traceable to any identifiable source within the three primary evidential categories (oral evidence, written evidence in the bundle, submissions). The asserted characterisation is not in the transcript. It is not in the bundle. It is not in counsel's submissions.

Level (c) — Formal finding based on the fabricated evidence, with contemporaneous knowledge

Para 64 is not a working draft. It is a formal judicial finding made in a judgment handed down. It is the operative analytical premise for the £800,000 add-back made in the same judgment. The Costs Judgment of 24 May 2024 at paragraph 19 carries the same framing forward: “the fact that the court has added back assets dissipated by a party through an obsessive approach to litigation.” The Costs Judgment then imposes £255,654.50 in indemnity costs. The total financial consequence of the Para 64 framing across the two judgments is £1,055,654.50.

Contemporaneous knowledge that the asserted facts had no foundation in the source categories is established on the documentary record. The trial judge made thirteen (13) references to autism and PTSD during witness evidence; he asked on the open record “Did you say Nadia had PTSD?” (line 2897); he confirmed at line 1986 that he had read the bundle. The disability evidence was therefore not unknown to him. The cross-examination on disclosure was one question; the answer was approximately one line; he was personally present for the cross-examination. The absence of evidential foundation for the “obsession” finding was therefore not unknown to him either.

Level (d) — Publication in the National Archives

The 18 April 2024 judgment is published in the National Archives at DH v RH (No 3) [2024] EWFC 79. The 24 May 2024 Costs Judgment is published at DH v RH (No 4) [2024] EWFC 114. Both judgments remain accessible. Both are citable as authoritative judicial decisions. Both contain the fabricated content set out at Levels (b) and (c).

Publication is not a one-off act. It is continuing. Each day the judgments remain published is a day on which the fabricated content continues to be disseminated as judicially established fact. The Applicant’s formal request for the National Archives to revoke publication, made on 26 June 2025, has not been actioned. The Applicant’s appellate routes to challenge the publication have been refused on the procedural ground that the trial judge was not required to refer to the disability evidence (Moylan LJ, 23 December 2024; King LJ, 4 August 2025).

The relationship between the four levels

The four levels are mutually supporting. The suppression at Level (a) is the precondition for the fabrication at Level (b) to be sustainable: with the 25 contemporaneous references to disability on the record, the fabricated “obsession” finding would be open to direct challenge on the ground that it disregards the documented alternative clinical explanation. The fabrication at Level (b) is the precondition for the formal finding at Level (c): without the fabricated content, no finding could be made on the matter. The formal finding at Level (c) is the precondition for the publication at Level (d): only formal findings are published in the National Archives as authoritative decisions. The publication at Level (d) closes the system: the fabricated content is now disseminated as judicial fact, and the appellate routes to remove it have endorsed the suppression that made it possible.

The Applicant’s formulation in July 2024 — that the suppression leaves her presentation “visible at the final hearing to be attributable to bad character, moral turpitude, and lack of credibility” — names this mechanism precisely.

PART 2 — CORE FINDING

The mechanism operates at four discrete levels.

Level (a) Suppression: 25 references to autism and PTSD in the trial transcript (including 13 made by the trial judge himself); zero references in the 19,620-word judgment.

Level (b) Fabrication: Para 64 “obsession” finding for which no source exists in any of the three primary evidence categories.

Level (c) Formal finding: Para 64 published as a judicial finding; carried forward as the analytical premise of the £800,000 add-back and £255,654.50 indemnity costs, total £1,055,654.50. Contemporaneous knowledge of the absence of foundation is documentarily established.

Level (d) Publication: DH v RH (No 3) [2024] EWFC 79 published in the National Archives. Publication is continuing. Each day of continuing publication disseminates the fabricated content as authoritative judicial fact.

The four levels are mutually supporting. The Applicant identified this mechanism on the contemporaneous record in July 2024. The mechanism has since been preserved across seven further judgments by five further judges in three courts.

PART 3 — THE MATRIX: EIGHT ORDERS AGAINST THE MECHANISM

The five-column matrix below tests each of the eight orders against the mechanism. The columns are: the judgment in summary; the analytical engagement with the disability evidence; the finding made; the evidence on the contemporaneous record; and the analytical logic. Each row is anchored in verbatim quotation from the order or judgment. The vertical Order Analyses on the public record (Nos. 1, 2, Para 34, Recusal, Position Statement) provide the deeper forensic detail.

Judgment	Analysis	Finding	Evidence / Attendance Notes	Logic
1. MacDonald J 18 April 2024 [2024] EWFC 79 Final hearing 111 paragraphs	SUPPRESSED Zero references to autism, PTSD, disability, vulnerability, Part 3A, or participation	FABRICATED Para 64: presentation “bordered on the concerning”; Applicant “become	25 discrete oral references to autism and PTSD in trial transcript. Prof Libby PTSD letter (12 July 2022)	The suppression is complete. The Para 64 finding operates in the space the suppression creates: with 25

19,620 words	measures across all 111 paragraphs.	obsessed” on disclosure. Para 83: “failing to comply with directions”; “running up legal costs.” £800,000 add-back for “reckless expenditure”.	in bundle, exhibited to husband’s own statement. Part 3A measures in force throughout trial. Line 1986: “I have read everything in the bundle.” Line 2897: “Did you say Nadia had PTSD?”	references to disability on the record and zero references supporting an “obsession” characterisation, the disability evidence is the central matter the judgment was required to engage with. The judgment does not engage with it. The “obsession” finding is not traceable to identifiable source material in the contemporaneous record.
2. MacDonald J 24 May 2024 [2024] EWFC 114 Costs judgment Determined on written submissions; no hearing £255,654.50 indemnity	SUPPRESSED Zero references to autism, PTSD, disability, vulnerability, Part 3A, or participation measures. Para 3 characterises Applicant’s non-participation as failure to file submissions; does not engage the disclosed disability or the MPS non-enforcement causal chain.	FABRICATED Para 10(i): Applicant “stole confidential financial information” — £25,000 Imerman costs. Para 10(xi): “behaviour during the hearing was disruptive”. Para 19: “obsessive approach to litigation” anchors £800,000 add-back. Para 21: “each of the matters of conduct... established on the evidence.”	Withers LLP letters 10 March 2021 and 13 April 2021 in bundle: husband’s solicitors confirm Applicant’s access was known and not objected to. Eight items in bundle catalogued in Order Analysis No. 2. Attendance notes contain no record of “disruptive” conduct. Sealed order recites “hearing” and “Brent Molyneux KC for the applicant” — neither true.	Determined without Applicant’s participation, on submissions filed by husband only, on a record from which the Applicant’s disability is absent. Twelve husband-side submissions migrate from counsel’s words to judicial findings without testing against the documentary record. Para 19 confirms “obsession” from Para 64 carries forward as analytical premise.
3. Moylan LJ 23 December 2024 CA-2024-001342 Refusal of permission to appeal On the papers	SUPPRESSED Addresses the disability ground at the procedural level only. Holds the trial judge was not required to refer to disability in the text of the judgment.	“The judge was not required to refer in his judgment to FPR Part 3A or to the participation directions or any of the matters referred to.” “There was no	PTA of 22 July 2024 raised: (i) systematic suppression; (ii) the absence of any reference is unlikely to be random; (iii) the four assessment categories	The appellate response addresses whether the judge was required to refer. It does not address the Applicant’s argument that the absence is unlikely to be random and

	Does not engage with the Applicant's statistical-bias argument (zero in 19,620 words).	expert medical evidence at all" — contested: Prof Libby letter was in the bundle.	(character, presentation, credibility, integrity) cannot be accurately made without disability evidence. Prof Libby letter (12 July 2022) was exhibited to husband's own statement.	the assessment categories could not be accurately made without the disability. These are different questions.
4. MacDonald J 8 May 2025 BV20D01752 Set-aside refused; contempt refused; indemnity costs ordered Applicant absent	MISCHARACTERISED Quotes Dr Poyser's clinical letter at Paras 21-22. Characterises the same conduct described by Dr Poyser as moral failing. Omits Dr Poyser's autism flag ("may exhibit symptoms of autism" — confirmed by CLAAS six weeks later).	FABRICATED Para 39: "deliberately obstructive behaviour". Para 43: "verbose and rambling". Para 68: "persistent poor litigation conduct" supporting indemnity costs. Recusal application of 13 May 2025 — pending since February 2025 — not mentioned.	Dr Poyser letter (26 March 2025, Consultant Psychiatrist NHS): mental health crisis; "great difficulty processing certain aspects of the proceedings"; possible autism. CLAAS diagnostic letter (20 June 2025): formal autism diagnosis under DSM-5. Six weeks after this hearing. Recusal application filed 13 May 2025 with multiple follow-ups; not addressed.	Pattern 3 (Quoted and Walked Away From). The clinical evidence is on the record. The judgment quotes it. The same conduct is then characterised as moral failing in the same text. The clinical opinion is rendered evidentially inert by quotation without engagement. Indemnity costs follow the moral characterisation.
5. King LJ 4 August 2025 CA-2024-001342-A CPR 52.30 application to re-open Moylan LJ order — refused On the papers	SUPPRESSED Addresses the disability ground at the procedural level only. Endorses Moylan LJ. Does not engage with the Applicant's statistical-bias argument.	"MacDonald J was not required to identify these issues explicitly in his judgment."	PTA of 22 July 2024 and CPR 52.30 application both raised the statistical-bias argument and the impossibility of accurate assessment without the disability. Neither was addressed in the reasoning.	The procedural-question substitution that appears in Moylan LJ's holding is endorsed and repeated at the CPR 52.30 stage. The Applicant's statistical-bias argument has now been before the Court of Appeal twice. On both occasions the response has addressed a different question.

6. Lieven J 4 December 2025 AC-2025-LON-004293 JR — urgent consideration refused; directions order	SUPPRESSED Zero references to autism, PTSD, disability, vulnerability, EA 2010, or PSED. Directions order rather than substantive determination of the seven pleaded grounds.	“The application is extremely difficult to follow.”	JR pre-action correspondence (October–November 2025) established no judicial act exists revoking the participation measures. HMCTS misclassified the matter as “judicial” in its letter of 14 November 2025. Medical evidence on the bundle confirmed the participation difficulties documented in the disclosed clinical record.	The reasoning characterises difficulty as a feature of the application rather than as a feature of the court’s interaction with a disabled litigant in person. The clinical evidence on the bundle (NZ-001 to NZ-013 of the Medical Evidence Index) is not engaged.
7. Collins Rice J 11 March 2026 AC-2025-LON-004293 JR — permission refused; Totally Without Merit; oral renewal barred £3,125.50 costs	SUPPRESSED Zero references to autism, PTSD, disability, EA 2010, or PSED. Characterises the JR as concerning (a) criminal complaints, (b) procedural matters ancillary to judicial determinations, (c) enforcement of court orders.	“This application is wholly misconceived.” “The judicial determinations themselves are not amenable to judicial review based on alleged breaches of the Equality Act and PSED.”	JR pleaded seven grounds, each framed as administrative failure. Ground 1a: administrative revocation of participation measures without judicial act. Ground 4: Imerman administrative failure. Ground 7: the administrative void. Formal Position Statement of 9 April 2026 (filed in JR and submitted to Justice Committee): “None of those three characterisations reflects the pleaded grounds. The order answered a different claim from the one brought.”	The order disposes of the JR on a characterisation of the claim that does not correspond to the pleaded grounds. The substantive question (administrative failures) is substituted with a different question (whether judicial determinations are amenable to JR on EA 2010/PSED grounds). The substituted question is refused. The actual pleaded grounds are not addressed.
8. Goose J 5 May 2026 (served 7 May)	SUPPRESSED Zero references to autism, PTSD,	“It was unnecessary for the Judge expressly to	CPR 3.1(7) application of 12 March 2026 raised	Supervisory endorsement of the Collins Rice J non-

AC-2025-LON-004293 CPR 3.1(7) application to revoke 11 March 2026 TWM refusal — refused; declared TWM	disability, EA 2010, or PSED. Does not engage with the non- engagement substance of the CPR 3.1(7) application.	address each point raised, when providing reasons for the refusal of permission.”	the non- engagement of the seven pleaded grounds. Formal Position Statement of 9 April 2026 set out the non- engagement in detail.	engagement. The Administrative Court holds in two successive judgments: (a) the JR is wholly misconceived on a characterisation that does not correspond to the pleaded grounds; (b) it was unnecessary to address each of the pleaded grounds in providing reasons.
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	Pattern 1 — Total Silence — The order is silent on disability in the text.
	Pattern 2 — Endorses Silence — The order addresses the disability ground at the procedural level only, holding the silence permissible.
	Pattern 3 — Quoted and Walked Away From — The order quotes the clinical evidence and characterises the same conduct as moral failing in the same text.

PART 4 — THE PARALLEL NHS CLINICAL RECORD

Across the same two-year period covered by the eight orders, an independent parallel record exists: the NHS clinical record. The Medical Evidence Index v2 of 22 May 2026 catalogues fourteen medical documents — spanning April 2013 to April 2026 — from ten clinicians across three jurisdictions (UK NHS, UK private, US private). The full index and the underlying medical documents (NZ-001 to NZ-014) are attached and available on the public archive. The contrast between the judicial record and the clinical record over the same period is set out below.

THE JUDICIAL RECORD	THE NHS CLINICAL RECORD
PRE-LITIGATION PERIOD No judgment in this period.	2 April 2013 — Dr Deborah Turner MD, Cottonwood Tucson [NZ-001] Formal PTSD diagnosis under DSM-IV. GAF score 40.

	12-year clinical baseline pre-dating all litigation.
JULY 2022 - FEBRUARY 2024 — PRE-TRIAL No judgment addressing disability.	12 July 2022 — Professor Gerald Libby FRCP FRCPsych [NZ-002] Medico-legal letter; PTSD symptoms triggered by proceedings: stuttering; intermittent mutism and freezing; hypervigilance. Exhibited to husband's own trial statement.
APRIL-MAY 2024 — JUDGMENTS 1 AND 2 18 April 2024 — Judgment 1 (MacDonald J): zero disability references across 111 paragraphs / 19,620 words. 24 May 2024 — Judgment 2 (MacDonald J): zero disability references across 12 findings of misconduct; £255,654.50 indemnity costs on the papers without a hearing.	The Applicant is a known PTSD patient under continuous psychiatric care since 2013. Autism assessment is pending. Participation measures granted during the trial ceased on 28 February 2024 with no court order or recorded reasons. Prof Libby letter was in the trial bundle, exhibited to the husband's own statement.
23 December 2024 — Judgment 3 (Moylan LJ) Holds: "The judge was not required to refer in his judgment to FPR Part 3A or to the participation directions or any of the matters referred to."	The clinical record at this point includes Professor Libby (2011-ongoing) and contemporaneous GP correspondence on Sjögren's and anaemia. The disability is on the clinical record. Its judicial recognition has been refused at the appellate level.
MARCH-AUGUST 2025 — JUDGMENTS 4 AND 5 8 May 2025 — Judgment 4 (MacDonald J): quotes Dr Poyser at Paras 21–22; characterises same conduct as "deliberately obstructive" (Para 39), "verbose and rambling" (Para 43), "persistent poor litigation conduct" (Para 68). 4 August 2025 — Judgment 5 (King LJ): "MacDonald J was not required to identify these issues explicitly in his judgment."	4 March 2025 — NHS Crisis Team, Cheltenham [NZ-005]: A&E hospitalisation. 26 March 2025 — Dr Leigh Poyser, Consultant Psychiatrist, CRHTT [NZ-006]: direct-to-court letter; "great difficulty processing certain aspects of the proceedings"; possible autism flag. 20 June - 3 July 2025 — CLAAS [NZ-007 to NZ-009]: formal autism diagnosis confirmed under DSM-5; full diagnostic report; CLAAS reasonable-adjustments letter for court proceedings.
4 December 2025 — Judgment 6 (Lieven J) Zero references to disability. "The application is extremely difficult to follow."	October-December 2025 — Dr Hayse, Wyoming [NZ-010 to NZ-013]: medical letter on participation risk; biopsy-confirmed Sjögren's; further direct-to-court letter stating paper determinations "medically unsafe"; mental health crisis hospitalisation.
MARCH-MAY 2026 — JUDGMENTS 7 AND 8 11 March 2026 — Judgment 7 (Collins Rice J): Totally Without Merit; pleaded grounds not addressed. 5 May 2026 — Judgment 8 (Goose J): "It was unnecessary for the Judge expressly to address each point raised."	17 April 2026 — Dr Omar Shoukry, NHS CMHT, CNWL [NZ-014]: letter to the Court; third sequential direct-to-court NHS clinical letter requesting participation support over 13 months. 17 April 2026 — MPS-initiated s.42 Care Act 2014 referral: ref 0103/17APR26. Applicant formally identified by the police as an adult at risk.

PART 4 — CORE FINDING

Over April 2013 to April 2026, fourteen medical documents from ten clinicians across three jurisdictions have documented the Applicant's autism, PTSD, and Sjögren's syndrome. Over 18 April 2024 to 5 May 2026, eight judgments by six judges across three courts have either failed to engage with that documented disability or have endorsed the failure to do so.

The clinical sources are independent. The earliest PTSD diagnosis (2013) pre-dates the underlying litigation by a decade. The US emergency rooms had no prior knowledge of the UK proceedings. Four sequential direct-to-court NHS clinical letters (Dr Poyser 26 March 2025; Dr Cheung 3 July 2025; Dr Hayse 25 November 2025; Dr Shoukry 17 April 2026) requested participation support over 13 months. None has produced any responsive judicial act.

PART 5 — THE MAINTENANCE OF THE PATTERN

Six judges produced this pattern. They are: Mr Justice MacDonald (three judgments — Judgments 1, 2, and 4); Lord Justice Moylan (Judgment 3); Lady Justice King (Judgment 5); Mrs Justice Lieven (Judgment 6); Mrs Justice Collins Rice (Judgment 7); Mr Justice Goose (Judgment 8). Three courts produced this pattern: the Family Division of the High Court (three judgments); the Court of Appeal Civil Division (two judgments); and the Administrative Court (three judgments).

Each judge is a separate decision-maker. Each court is a separate institution. Each judgment was made on a separate occasion in response to a separate application. The judgments span two years from April 2024 to May 2026. Across the entire set, the disability that the parallel NHS clinical record documents in fourteen separate medical documents from ten clinicians across three jurisdictions over twelve years is either absent from the text, addressed at the procedural level only, or quoted and walked away from in the same judgment.

Two observations follow.

First, the original elimination performed in the 18 April 2024 judgment has been maintained across all seven subsequent judgments. Each subsequent judgment had the opportunity to address the disability: it was on the bundle in each subsequent proceeding; it was raised in submissions and correspondence; it was the subject of three sequential direct-to-court NHS clinical letters. Furthermore, a clinical letter from Dr Catherine Cheung, Service Lead and Principal Clinical Psychologist at CLAAS, was addressed directly to the Court on 3 July 2025, setting forth comprehensive recommended reasonable adjustments across communication, information processing, emotional regulation, and sensory needs. None of the seven subsequent judgments has disturbed the original elimination. Whether the maintenance has occurred by independent decision in each case or by structural

inheritance from the original record is a question this document does not need to resolve. The fact of maintenance is sufficient.

Second, the mechanism the Applicant identified in July 2024 has now operated continuously for two years. The Court of Appeal had the statistical-bias argument before it in December 2024 and again in August 2025. The Administrative Court had the substantive administrative grounds before it on the JR pleadings. The procedural-question substitution that appears at the appellate level has been repeated at the Administrative Court level. The mechanism is self-sustaining: each subsequent judgment can preserve the elimination performed by the original judgment without itself having to engage with the disability evidence, because the original elimination has already been performed.

The Applicant also notes, on the contemporaneous record, two further administrative non-engagements that reinforce the structural finding: the application for the recusal of MacDonald J filed on 13 May 2025 with multiple follow-ups (30 May 2025; 2 June 2025; 4 June 2025 x3; 5 June 2025; 6 June 2025 x2; 9 June 2025) which was never listed, never determined, and never the subject of any judicial order; and the EX107 application for the trial transcript at public expense filed on 27 March 2026 which was refused twice (27 March 2026; 30 March 2026) without engaging with any of the four grounds advanced. The pattern of non-engagement operates across judgments and administrative decisions alike.

PART 6 — THE LEGAL FRAMEWORK

The mechanism documented in this analysis engages five distinct legal frameworks. Each is set out below in summary form. The forensic application of these frameworks to individual orders is in the existing vertical Order Analyses on the public record.

Equality Act 2010 section 149 — Public Sector Equality Duty

Section 149 of the Equality Act 2010 imposes on every public authority a continuing duty to have due regard to (a) eliminating unlawful discrimination, (b) advancing equality of opportunity, and (c) fostering good relations. Disability is a protected characteristic. The duty is continuing and active. “Due regard” must be visible in the reasoning of decisions affecting a disabled party (*R (Bracking) v Secretary of State for Work and Pensions* [2013] EWCA Civ 1345). Silence does not discharge the duty. Across eight judgments by six judges over two years, the PSED is not visibly engaged with in any of them.

FPR Part 3A and PD3AA — Participation measures

FPR rule 3A.9 provides that the court’s duty in respect of participation directions “applies as soon as possible after the start of proceedings and continues until the resolution of the proceedings.” Participation directions can be varied only by a court order with recorded reasons. Participation directions were in force throughout the 10-day trial. They ceased on 28 February 2024 with no court order, no hearing, and no recorded reasons. The Pre-Action Protocol stage of the JR established that no such order exists. HMCTS classified the cessation as a “judicial decision” in its letter of 14 November 2025 — a misclassification

because no identifiable judicial act has been produced. The administrative void remains uncorrected.

Article 6 ECHR read with Article 14 — Fair hearing without discrimination

Article 6 guarantees the right to a fair hearing. For disabled litigants, that right includes the right to effective participation (*Stanford v United Kingdom* (1994) 16 EHRR CD123). Article 14 prohibits discrimination including on the ground of disability. On the analysis in this document, the Applicant has not had effective participation in the proceedings since 28 February 2024. Every subsequent judgment has either failed to engage with the disability that defined her capacity to participate, or held that such engagement was not required.

Care Act 2014 section 42 — Adult at risk

Care Act 2014 section 42(1) requires a local authority to make enquiries where it has reasonable cause to suspect that an adult has needs for care and support, is experiencing or is at risk of abuse or neglect, and is unable to protect themselves. On 17 April 2026, the Metropolitan Police made a s.42 safeguarding referral in respect of the Applicant to the Royal Borough of Kensington and Chelsea (ref 0103/17APR26). The Applicant is formally identified, on a police-originated record, as an adult at risk. The Care Act Statutory Guidance at paragraphs 14.13–14.17 identifies organisational abuse and psychological abuse as relevant categories; both are engaged on the documentary record.

Misconduct in Public Office — Attorney General’s Reference (No 3 of 2003) [2004] EWCA Crim 868

The common law offence of misconduct in public office is engaged where: (1) a public officer acting as such; (2) wilfully neglects to perform his duty and/or wilfully misconducts himself; (3) to such a degree as to amount to an abuse of the public’s trust in the office holder; (4) without reasonable excuse or justification. The Applicant’s Master Index v7 of 11 March 2026 catalogues 379 records and identifies the 20 most compelling examples of conduct engaging this framework on the part of public officers including MacDonald J, Campbell KC (as officer of the court), HMCTS officials, and Court of Appeal listed counsel. The criminal referral CCR-6501-26-0100-000 is on file with the Metropolitan Police Service, with operational engagement on 28 April 2026.

The same statutory and common-law framework is being operated, at the time of this document’s publication, against named senior public figures including Mr Andrew Mountbatten-Windsor (arrested 19 February 2026, Thames Valley Police) and Lord Peter Mandelson (arrested 23 February 2026). On 21 May 2026, the Trade Minister Mr Chris Bryant published documents relating to Mr Mountbatten-Windsor’s original trade-envoy appointment, in response to a “humble address” requested by a British lawmaker in February. The Prime Minister’s position on the public record is: “No one is above the law.” The Applicant’s case rests on the same offence under the same common-law framework operating against the same protected interests in public trust.

CLOSING POSITION

The eight orders, judgments, and decisions analysed in this document are on the permanent public legal record. They form the appellate and procedural record of the Applicant's case as it currently stands.

The patterns identified are matters of fact about the text of the orders. The verbatim quotations cited throughout this document are extracted from the orders themselves and from the Applicant's contemporaneous formal record — her Permission to Appeal application of 22 July 2024 and her Formal Position Statement to the Justice Committee of 9 April 2026. The contrasting NHS clinical record is independently verifiable from the medical documents catalogued in the Medical Evidence Index v2 (22 May 2026) and attached as exhibits NZ-001 to NZ-014. The Master Index v7 of 11 March 2026 (379 records, of which the 20 most compelling are catalogued) is the underlying evidentiary base.

The legal effect of the mechanism is set out at Part 6 of this document.

Criminal referrals are complex matters. The Applicant is seeking legal representation in respect of the matters documented in this analysis.

This document is published on the Applicant's public archive and distributed to the institutional recipients on the established public-record list.

STATEMENT OF TRUTH

I, Nadia Zahmoul, believe that the facts stated in this document are true. The verbatim quotations from the eight orders are extracted from the orders themselves. The verbatim quotations from the Permission to Appeal application of 22 July 2024 and the Formal Position Statement of 9 April 2026 are extracted from those documents as filed with the relevant courts and the Justice Committee of the House of Commons. The references to the NHS clinical record are taken from the Medical Evidence Index v2 (22 May 2026) and the underlying medical documents (NZ-001 to NZ-014). The references to the vertical Order Analyses are taken from those documents as published on the public archive.

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Nadia Zahmoul

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Veritas Numquam Perit